

21CHCV00794 21CHCV00794

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Case Number: 21CHCV00794 Hearing Date: August 17, 2026 Dept: F47

Dept. F47

Date: 8/17/26

TRIAL DATE: 10/5/26

Case #21CHCV00794

MOTION TO

DISMISS

Motion filed on 4/1/26.

MOVING PARTY: Defendant Ricca Chemical Co.

RESPONDING PARTY: Plaintiff Estate of Rosa Pleitez, by
and through her husband, Rigoberto Pleitez

NOTICE: ok

RELIEF REQUESTED: An order dismissing Plaintiff Estate
of Rosa Pleitez, by and through her husband, Rigoberto Pleitez's Fourth Amended
Complaint as to Defendant Ricca Chemical Co. (Doe 8), pursuant to CCP 583.210
and 583.250.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Plaintiff Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez's claim that from 10/13/19 through at least 9/21/20, Decedent Rosa Pleitez (Decedent) was exposed to chemicals and caustic products produced, manufactured, distributed and/or sold by Defendant Miles Chemical Company, Inc. (Miles Chemical), Macdermid Enthone, Inc. (Macdermid) and others while employed as a janitor for Carbonite Industries in Riverside, California. It is alleged that Decedent developed catastrophic interstitial lung disease with major injury and disability that affected her ability to work and support herself and her family and ultimately, was a substantial factor in causing her death on or about 3/26/22.

On 10/8/21, Plaintiffs Rosa Pleitez and Rigoberto Pleitez filed the original complaint in this action asserting causes of action against certain named defendants and Does 1-200 for: (1) Strict Liability – Design Defect, (2) Strict Liability – Failure to Warn, (3) Negligence, (4) Breach of Implied Warranty and (5) Loss of Consortium.

As against Doe 13, the complaint alleged that “unknown chemicals and caustic products sold by DOES 1 through 200 contain recognized contaminants and caustic substances which are scientifically known to cause and/or contribute to the development of interstitial lung disease and directly caused and/or contributed to the development of Plaintiff's interstitial lung disease.” (Complaint ¶¶5, 20, 42-43). On 5/24/23, following Decedent's death, the

Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez (Plaintiff) substituted in for Decedent in the First Amended Complaint (FAC). A new cause of action for wrongful death was added in the First Amended Complaint and the breach of implied warranty and loss of consortium causes of action were eliminated. The claims for strict liability – design defect, strict liability – failure to warn and negligence were realleged against Does 1-200 under the 2nd cause of action titled survival action in the First Amended Complaint.

On 11/12/25, Plaintiff filed the operative Fourth Amended Complaint (4AC) alleging causes of action for negligence for wrongful death, strict products liability and survival action.

On 1/6/26, Plaintiff filed a Doe amendment naming Ricca Chemical Co. (Ricca) in place of Doe 8. Ricca was served with the Fourth Amended Complaint on 1/21/26. (See Proof of Service filed 2/4/26).

On 4/1/26, Ricca filed and served the instant motion

seeking an order dismissing Plaintiff's Fourth Amended Complaint due to Plaintiff's unreasonable and unjustified delay in service of process pursuant to CCP 583.210, 583.250 and 583.420.

Plaintiff has opposed the motion only as to the 1st cause of action for wrongful death. Ricca has filed a reply to the opposition.

ANALYSIS

Ricca's Request for Judicial Notice (RJN) is granted.

CCP 583.210(a) provides that "[t]he summons and complaint shall be served upon a defendant within three years after the action is commenced against the defendant. For the purpose of this subdivision, an action is commenced at the time the complaint is filed."

CCP 583.250 provides:

"(a) If service is not made in an action within the time prescribed in this article:

(1) The action shall not be further prosecuted and no further proceedings shall be held in the action.

(2) The action shall be dismissed by the court on its own motion or on motion of any person interested in the action, whether named as a party or not, after notice to the parties.

(b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute."

CCP 583.240 provides:

"In computing the time within which service must be made pursuant to this article, there shall be excluded the time during which any of the following conditions existed:

(a) The defendant was not

amenable to the process of the court.

(b) The prosecution of the action or proceedings in the action was stayed and the stay affected service.

(c) The validity of service was the subject of litigation by the parties.

(d) Service, for any other reason, was impossible, impracticable, or futile due to causes beyond the plaintiff's control. Failure to discover relevant facts or evidence is not a cause beyond the plaintiff's control for the purpose of this subdivision."

The deadline is not extended by the fact that Ricca was named in place of a Doe defendant. See Higgins (2017) 15 CA5th 973, 975, 982; Barrington (1985) 39 C3d 146, 154; Norgart (1999) 21 C4th 383, 398-399. The court lacks jurisdiction to proceed where the mandatory service period has expired. Eghtesad (2020) 51 CA5th 406, 417. Here, Ricca was served in January 2026 which is more than four years after this action was commenced on 10/8/21. Moreover, none of the conditions set forth in CCP 583.240 for tolling the service period apply in this case.

As noted above, the original complaint in this action was filed on 10/8/21 naming Doe 8 as a defendant. Therefore, the deadline to serve Ricca, which was named in place of Doe 8, was 10/8/24. Also, as noted above, Ricca was not served until 1/21/26, well beyond the 3 year deadline. As such, dismissal of the claims against Ricca is mandatory. CCP 583.210(a); CCP 583.250.

Plaintiff does not oppose the dismissal of the 2nd and 3rd causes of action in the complaint. (See Opposition, p.2:5-6, p.2:18-23). Plaintiff's argument that Rigoberto Pleitez's wrongful death cause of action is not barred because it did not accrue until Decedent's death on 3/26/22, was first asserted in the First Amended Complaint which was filed on 5/24/23, and Ricca was served within 3 years on 1/21/26 is without merit.

In its 6/17/26 ruling on Waxie's motion to dismiss, the Court noted that in Clark (1987) 197 CA3d 50, the Court of Appeal upheld the dismissals of two defendants who had initially be named fictitiously in the

complaint on the ground that plaintiffs failed to serve the complaint on defendants within the two-year period provided in CCP 583.420. (See 6/17/26 Minute Order, p.4). In Clark, on 8/20/82, the decedent filed a products liability action alleging injuries caused by exposure to asbestos. Clark, supra at 53. On 10/24/83, after the decedent's death, on 11/8/82, the decedent's wife was permitted to file an amended complaint to prosecute the decedent's claims and to add a wrongful death claim. Id. On 10/28/84, the plaintiff-wife filed a new action alleging only wrongful death against the same defendants and added Does 1 to 1,000. Id. The allegations in the new action concerned the "same chemical substances named in the original action." Id. at 53-54. In other words, the wife's new complaint for wrongful death was based on the same set of factual allegations. On 4/18/86, the wife's complaint was amended to name Stabond Corporation (Stabond) as one of the Doe defendants. Id. at 54. The court explained that the use of the CCP 474 "relation-back doctrine" was "ultimately limited by [S]ection 583.210 which provides that, in any event, a defendant must be served within three years." Id. at 56.

Similarly, here, Decedent and Rigoberto Pleitez commenced an action on 10/8/21, alleging various claims against named defendants and Does 1-200. (See Complaint). As to Doe 8, the complaint alleged that "unknown chemicals and caustic products sold by DOES 1 through 200 contain recognized contaminants and caustic substances which are scientifically known to cause and/or contribute to the development of interstitial lung disease and directly caused and/or contributed to the development of Plaintiff's interstitial lung disease." (Complaint ¶¶ 5, 20, 42-43). After Decedent's death on 3/26/22, the Estate of Rosa Pleitez, by and through her husband, Rigoberto Pleitez, converted the claims to wrongful death and negligence against Ricca as Doe 8. However, the basis for the claims in the First Amended Complaint remained unchanged. (See FAC ¶¶ 5, 20, 53). The basis of the allegations against Ricca as Doe 8 also remain unchanged in the operative Fourth Amended Complaint. (Compare Complaint ¶ 5 with 4AC ¶¶ 6, 24). Therefore, this action commenced against Ricca as of the date of the filing of the Complaint on 10/8/21.

The difference between the instant case and Clark, supra, and the cases relied on by Plaintiff (Barrington (1985) 39 C3d 146; Hennessy's Tavern, Inc. (1988) 204 CA3d 1351; Brumley (2007) 156 CA4th 316; Tanguilig (2018) 22 CA5th 313) is that in those cases the mandatory dismissal was not applied because the amended complaints raised a new set of facts and theory of injury. In Barrington, the plaintiff added a new cause of action based on

a separate/different factual allegation.

See Barrington, *supra* at 149, 154. Here, the wrongful death cause of action is based on the same facts alleged in the original complaint in which Rigoberto Pleitez was a plaintiff making a claim for loss of consortium. The factual bases for the claims have remained the same throughout the various pleadings in this action. (See Complaint ¶12; FAC ¶12; SAC ¶12; TAC ¶6; 4AC ¶6).

In Hennessey's Tavern, Inc., new defendants were first named in the amended complaint and not substituted for *doe* defendants named in the original complaint. See Hennessey's, *supra* at 1360. Additionally, a new claim based on an entirely different set of facts was alleged. *Id.* In Brumley, new facts were also included in the amended complaint. See Brumley, *supra* at 326. Tanguilig, also involved an amended pleading based on facts different than those alleged in the original pleading. Tanguilig, *supra* at 322.

The Court also has the discretion to dismiss an action on the ground of delay in prosecution if service is not made within two years after the action is commenced against the defendant. See CCP 583.410; CCP 583.420(a)(1); ZL Technologies, Inc. (2017) 13 CA5th 603, 609. A plaintiff has the burden of showing excusable delay when the action has not been served on the defendant within two years after being commenced against that defendant. Terzian (1994) 24 CA4th 78, 83.

Even if mandatory dismissal was not required under CCP 583.210 and CCP 583.250, discretionary dismissal under CCP 583.420(a)(1) is warranted. Regardless of whether the service deadline is calculated from the original complaint or the First Amended Complaint, Plaintiff did not serve Ricca within two years of filing. Therefore, Plaintiff has the burden of showing excusable delay. Terzian, *supra*; Salas (1986) 42 C3d 342, 347; Clark, *supra* at 55. Here, Plaintiff has failed to provide any reason for the delay. As such, Plaintiff has not met the burden of establishing excusable delay, especially considering the prejudice to Ricca by being brought into the case at this late date. See Clark, *supra* at 58.

CONCLUSION

The motion is granted.